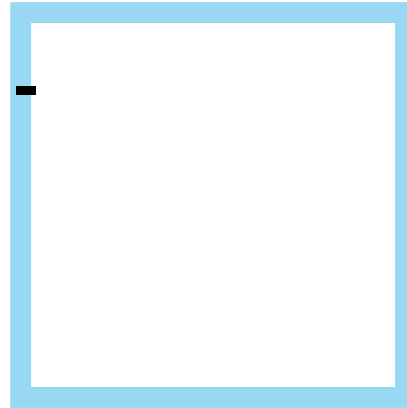


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TEMPORARY WORK - INTERNATIONAL AGREEMENT VISA



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TEMPORARY WORK - INTERNATIONAL AGREEMENT VISA

The UK International Agreement Visa is for individuals who wish to come to the UK to provide a service covered by international law, such as private servants in diplomatic households or employees of overseas governments and international organisations.

The International Agreement Visa is not a route to settlement, but applicants can stay in the UK for a maximum of two years. International Agreement visa holders can also be joined by a dependent partner and children under the age of 18.

Requirements for a UK International Agreement Visa

In order to qualify for a Temporary Work – International Agreement Visa, you will need to satisfy UK Visas and Immigration that:

- You are at least 18 years old;
- You are applying for a role as a private servant in a diplomatic household or as an employee of an overseas government or other international organisation established under an international treaty signed by the UK;
- You meet the additional role-based requirements for the role that you will work in;
- You have a valid Certificate of Sponsorship for the role you wish to undertake, issued by a sponsor that holds a valid Temporary Work – International Agreement sponsor licence;
- You genuinely intend, and are able, to undertake the role for which you are being sponsored and do not intend to undertake other employment;
- You have sufficient personal savings to support yourself in the UK;
- Your application does not fall for refusal under the general grounds for refusal;
- You have provided a valid TB certificate, if required.

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The exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice. (<https://www.google.co.uk/search?q=richmond+chambers+in>)

To discuss your UK International Agreement Visa application with one of our immigration barristers, contact our Temporary Worker lawyers on 0203 617 9173 or complete our enquiry form below.

Role-Based Requirements for a Private Servant in a Diplomatic Household

In order to qualify for an International Agreement Visa as a private servant in a diplomatic household you will need to be employed as a private servant by, and in the household of, either:

- a named member of staff of a diplomatic or consular mission who has diplomatic privileges and immunity as defined by the **Vienna Convention on Diplomatic Relations** (https://legal.un.org/ilc/texts/instruments/english/conventions/9_1_1961.pdf); or
- a named official employed by an international organisation recognised by the UK government with diplomatic privileges or immunities under UK or international law.

You must not be a relative of your employer, or your employer's spouse, either by blood or by marriage.

You must intend to work full time in the role you are being sponsored for and must not intend to undertake any other role for your sponsor other than as a private servant in the specified household.

You must be paid at least the **National Minimum Wage** (<https://www.gov.uk/national-minimum-wage-rates>) throughout your stay.

You will need to provide specified evidence of your employment terms and conditions and a signed statement from your sponsor confirming that the role will not constitute work done in relation to the employer's family household within the meaning of regulation 57 of the National Minimum Wage Regulations 2015.

You must also satisfy the Home Office that you intend to leave the UK at the end of your permitted stay.

Role-Based Requirements for an Employee of an Overseas Government or Other International Organisation Requirement

In order to qualify for an International Agreement Visa as an employee of an overseas government or other international organisation you must be under a contract of employment with the overseas government or international organisation.

You must not intend to take any other form of role for your sponsor other than that for which your Certificate of Sponsorship is assigned.

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International Agreement Worker Certificate of Sponsorship (CoS) Requirement

In order to obtain a UK International Agreement Visa you will need to have a valid Certificate of Sponsorship for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that holds a valid Temporary Work – International Agreement sponsor licence.

In order to be eligible for an International Agreement sponsor licence, your employer must be able, and intend, to sponsor either:

- a private servant in a diplomatic household or in the household of an official working for a recognised international organisation; or
- an employee of an overseas government or international organisation.

In order to apply for a sponsor licence as an overseas government organisation (such as a diplomatic mission) or an international organisation, your organisation must be recognised by the UK. In the case of an international organisation, you must be an organisation that is established by an international treaty signed by the UK. This can include offices of 'states' not recognised by the UK, but your organisation must be included on the exempt organisations list published by the UK government. This is a list of international organisations recognised by the UK, some of whose employees or officials (typically, senior employees or officials) may qualify for an exemption from immigration control. Employees or officials of these organisations who are not exempt from immigration control can be sponsored on the International Agreement route.

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission on the International Agreement route and are applying to continue working for the same sponsor as in your last permission.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Temporary Work – International Agreement Visa application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- A start date which is no more than 3 months after the date of your Temporary Work – International Agreement Visa application;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

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Settlement as an International Agreement Worker

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The Temporary Work – International Agreement Worker Visa is not a route to settlement. However, it may be possible to apply from within the UK to switch into another immigration route which can lead to indefinite leave to remain.

Switching into the International Agreement Route

It is not possible to switch into the International Agreement route from within the UK. An application for a Temporary Work – International Agreement Visa must be made from outside the UK.

Conditions of Stay on a Temporary Work – International Agreement Visa

If your application for a Temporary Work – International Agreement Visa is successful you will be able to work for your sponsor in the job described on your Certificate of Sponsorship.

If you are being sponsored for a job as an employee of an overseas government or international organisation (but not as a private servant in a diplomatic household) you will also be able to have a second job, provided you are working in the job described on your Certificate of Sponsorship.

Temporary Work – International Agreement Visa Processing Times

Most Temporary Work – International Agreement Visa applications are decided within 3 weeks. It may be possible to secure a faster decision if the visa application centre offers a priority service.

Most applications from International Agreement Workers to extend their stay are decided within 8 weeks. You can also secure a decision within 5 days if you apply via the Priority Service or by the end of the next working day if you apply via the Super Priority Service.

International Agreement Worker Visa Dependents

If you are granted entry clearance or leave to remain as an International Agreement Worker you can be joined or accompanied by a dependent partner and dependent children under the age of 18.

International Agreement Worker Visa Refusals

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(If) your application for a Temporary Work – International Agreement Visa is refused, you may be able to make a fresh application or apply for Administrative Review of the refusal decision.

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How Our Immigration Barristers Can Help

Our team of immigration barristers has experience in assisting private servants in diplomatic households and employees of overseas governments and international organisations to live and work in the UK. Our barristers can help you to ensure that you meet your start date and that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to private servants in diplomatic households and employees of overseas governments and international organisations as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Fresh applications, Administrative reviews and Judicial reviews for Temporary Workers 

WHAT CAN WE HELP YOU WITH?

To discuss your Temporary Work – International Agreement Visa application with one of our immigration barristers, contact our Temporary Worker lawyers on 0203 617 9173 or complete our enquiry form below.

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